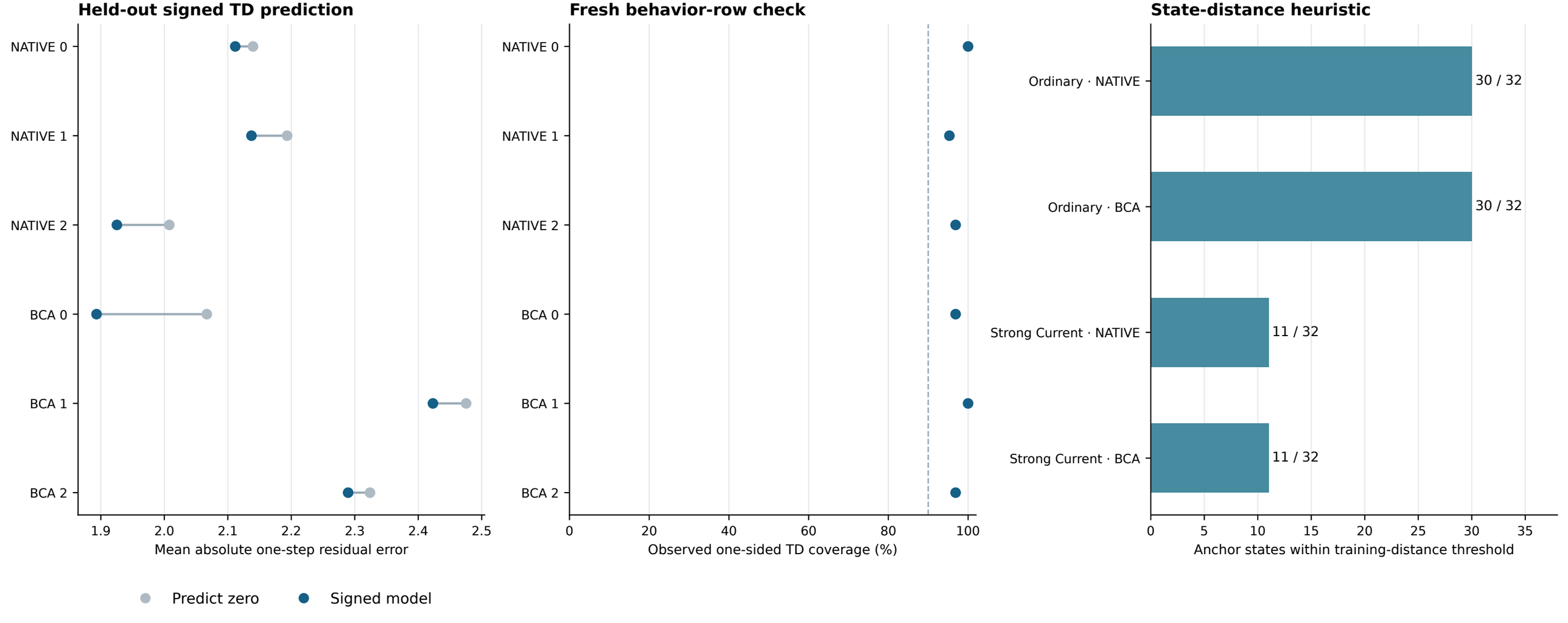What the fresh checks do—and do not—establish